Application for Certification according to REGULATION (EU) 2017/745 (MDR)

After being checked and signed by HTCert this turns into a valid Certification Contract.
Integral parts of the contract are:

The Certification Request as submitted on: 29/02/2024 and the changes sent by email on 20/05/2024
The Quotation for Medical Devices Certification dated: 13/03/2024
The General Terms and Conditions for Medical Devices Certification under MDR

Application ID: T_16024_24_03_02

Details of the manufacturer

Legal name and form	SPIKA TECH, S.L.			
Registered trade name	SPIKA TECH, S.L.			
SRN	ES-MF-000044822			
Headquarters address	C/ ALCALA DE GUADAIRA NUM 6 Planta 6 Pta. A MADRID			
Post / ZIP Code	28018		City / country	Spain
Phone No	+34 697 30 08 06		Tax Identification Number	ESB87386900
email	fernando.pozo@spikatech.com		website	https://www.spikatech.com/en/home-english/
Legal representative	Mr Salutation	Carlos First name	Zúñiga Last name	Arnau email
Contact person	Dr Salutation	Fernando First name	Pozo Last name	fernando.pozo@spikatech.com email
Authorized EC Representative applicable for manufacturers located outside the Union	N/A SRN	N/A Legal company name and form	N/A Address	N/A Country

Scope of the Certification

REGULATION (EU) 2017/745 (MDR)		
☒ Annex IX Chapter I	☐ Annex XI PART A	☐ Annex IX Chapter II
Additionally, Quality Management System Certification		
☐ EN ISO 13485:2016	☐ EN ISO 9001:2015	

Devices included in the certification scope.

The devices applied for and the respective conformity assessment procedure are:

Product	Classification	Applicable route	Legacy device
VR-CARDIO	IIa or IIb (to be clarified at application review phase)	Annex IX	☐ Yes ☒ No

Sites included in the certification scope.

Legal manufacturer sites included in the scope of this application as well as crucial suppliers and critical subcontractors are:

Site Name	Site Type	Country
SPIKA TECH, S.L.	Main site	Spain

Supportive Documentation

	Document required	Filename(s) of relevant document(s) submitted[1]	Deadline for submission[2]
1.	Company Register Extract	A *Please upload in SharePoint folder: Administrative/Applications & Contracts*	05/12/2024
2.	Information about any previous application for the same device-related quality management system.	N/A *Please upload in SharePoint folder: Administrative/Applications & Contracts*	N/A
3.	The mandate for the designation of the authorised representative or the draft mandate for the designation of an authorised representative and a letter of intention from the authorised representative to accept the mandate	N/A *Please upload in SharePoint folder: Administrative/Applications & Contracts*	N/A
4.	Current certificates of the manufacturer, as stated in Quotation Questionnaire.	ISO 13485 *Please upload in SharePoint folder: Administrative/Applications & Contracts*	05/12/2024
5.	Specifically for legacy devices:		
	a) copy of the last issued certificate(s) together with the certificate history	N/A *Please upload in SharePoint folder: Administrative/Applications & Contracts*	N/A

[1] State all the supporting documents for each requirement, e.g. all the Technical Documentation File Reference Numbers, all the relevant Quality agreements, etc. If not applicable, state N/A.
[2] if not already provided

	b) a statement that the device in question has been marketed for the same intended purpose under the Directive 93/42/EEC	N/A *Please upload in SharePoint folder: Administrative/Applications & Contracts*	N/A
	c) a description of the modifications introduced to comply with the MDR	N/A *Please upload in SharePoint folder: Administrative/Applications & Contracts*	N/A
6.	Statement on the status of the certificates *A statement that all certificates submitted are valid, not suspended or withdrawn and not threatened with suspension or withdrawal.*	Certificate *Please upload in SharePoint folder: Administrative/Applications & Contracts*	05/12/2024
7.	Draft of EU declaration of conformity in accordance with MDR Article 19 and Annex IV for the device model(s) covered by the conformity assessment procedure	D. EU Declaration of Conformity *Please upload in SharePoint folder: Quality Management System*	05/12/2024
8.	Documented description of the procedures in place to fulfil the obligations arising from the quality management system and required under MDR and the undertaking by the manufacturer in question to apply those procedures	List of SOPs Quality Manual *Please upload in SharePoint folder: Quality Management System*	05/12/2024
9.	Description of the procedures in place to ensure that the quality management system remains adequate and effective, and the undertaking by the manufacturer to apply those procedures	PNT-025-v05 - Surveillance system *Please upload in SharePoint folder: Quality Management System*	05/12/2024
10.	The documentation on the manufacturer's post-market surveillance system and, where applicable, on the PMCF plan, and the procedures put in place to ensure compliance with the obligations resulting from the provisions on vigilance set out in MDR Articles 87 to 92,	PNT-025-v05 - Surveillance system *Please upload in SharePoint folder: Quality Management System*	05/12/2024
11.	Description of the procedures in place to keep up to date the post-market surveillance system, and, where applicable, the PMCF plan, and the procedures ensuring compliance with the obligations resulting from the provisions on vigilance set out in MDR Articles 87 to 92, as well as the undertaking by the manufacturer to apply those procedures,	PNT-025-v05 - Surveillance system *Please upload in SharePoint folder: Quality Management System*	05/12/2024
12.	Documentation on the clinical evaluation plan	K1. Clinical Evaluation Plan *Please upload in SharePoint folder: Quality Management System*	05/12/2024
13.	Description of the procedures in place to keep up to date the clinical evaluation plan, taking into account the state of the art.	K. Clinical evaluation *Please upload in SharePoint folder: Quality Management System*	05/12/2024

14.	Documentation of the quality management system, including:		
	a) the manufacturer's quality objectives	MQ-01-v05 - Quality manual *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	b) the organization of the business and in particular:		
	· the organizational structures with the assignment of staff responsibilities in relation to critical procedures, the responsibilities of the managerial staff and their organizational authority	PNT-011-v02 - Job description of the job positions MQ-01-v05 - Quality manual *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· the methods of monitoring whether the operation of the quality management system is efficient and in particular the ability of that system to achieve the desired design and device quality, including control of devices which fail to conform	PNT-010-v02 - Review of effectiveness of SGC *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· where the design, manufacture and/or final verification and testing of the devices, or parts of any of those processes, is carried out by another party, the methods of monitoring the efficient operation of the quality management system and in particular the type and extent of control applied to the other party	PNT-018-v02 - Validation processes services products *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	c) the procedures and techniques for monitoring, verifying, validating and controlling the design of the devices and the corresponding documentation. Those procedures and techniques shall specifically cover:		
	· the strategy for regulatory compliance, including processes for identification of relevant legal requirements, qualification, classification, handling of equivalence, choice of and compliance with conformity assessment procedures	PNT-002-v03 - Risk management PNT-024-v01 - Preparation of technical documentation PNT-026-v03 - Design and development MQ-01-v05 - Quality manual *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· identification of applicable general safety and performance requirements and solutions to fulfil those requirements, taking applicable Common Specifications and, where opted for,	F1. GSPR Checklist *Please upload in SharePoint folder: Quality Management System*	05/12/2024

	harmonized standards or other adequate solutions into account		
	· risk management as referred to in Section 3 of Annex I of MDR	PNT-002-v03 - Risk management *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· the clinical evaluation, pursuant to MDR Article 61 and Annex XIV, including post-market clinical follow-up	K. Clinical evaluation *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· solutions for fulfilling the applicable specific requirements regarding design and construction, including appropriate pre-clinical evaluation, in particular the requirements of MDR Chapter II of Annex I	PNT-026-v03 - Design and development *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· solutions for fulfilling the applicable specific requirements regarding the information to be supplied with the device, in particular the requirements of MDR Chapter III of Annex I	C1. Labels C2. IFU *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· the device identification procedures drawn up and kept up to date from drawings, specifications or other relevant documents at every stage of manufacture	PNT-015-v04 - Product identifiability identification processes *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	· management of design or quality management system changes	PNT-005-v01 - Change control management *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	d) The verification and quality assurance techniques at the manufacturing stage and in particular the processes and procedures which are to be used, particularly as regards sterilization and the relevant documents:	PNT-018-v02 - Validation processes services products *Please upload in SharePoint folder: Quality Management System*	05/12/2024
	e) The appropriate tests and trials which are to be carried out before, during and after manufacture, the frequency with which they are to take place, and the test equipment to be used; it shall be possible to trace back adequately the calibration of that test equipment.	PNT-016-v03 - Approval rejection and release of product PNT-018-v02 - Validation processes services products PNT-026-v03 - Design and development *Please upload in SharePoint folder: Quality Management System*	05/12/2024
15.	Technical Documentation, as stated in Quotation Questionnaire. *For the submission of the Technical Documentation, please use the template available on the SharePoint*	TF01 – VR-CARDIO *Please upload in SharePoint folder:* *Technical Documentation*	05/12/2024

	library (Structure of Technical Documentation for MDR). *For each technical documentation a separate data folder, properly named must be submitted.*		
16.	Suppliers and Subcontractors certification status and control mechanisms		
	Procedure for the suppliers' control	PNT-012-v01 - Selection evaluation approval of suppliers *Please upload in SharePoint folder: Administrative/Applications & Contracts/Subcontractors and Suppliers*	05/12/2024
	Suppliers and Subcontractors certificates, as stated in Quotation Questionnaire	N/A *Please upload in SharePoint folder: Administrative/Applications & Contracts/Subcontractors and Suppliers*	N/A
	Quality agreements with Suppliers and Subcontractors	N/A *Please upload in SharePoint folder: Administrative/Applications & Contracts/Subcontractors and Suppliers*	N/A

Manufacturer's Declaration

- We declare that
  - ☐ no application has been lodged with any other notified body for the same device-related quality management system.
  - ☐ we have provided HTCert with all information about any previous application for the same device-related quality management system.
- Specifically for legacy devices that can benefit from the extended transitional period, we declare that
  - ☐ the certificates under Directive 93/42/EEC (MDD) covering the listed products were issued after 25 May 2017, were valid on 26 May 2021 and have not been withdrawn afterwards.
  - ☐ for devices that did not require the involvement of a notified body under the MDD the declaration of conformity was drawn up prior to 26 May 2021.

  Additionally, we declare that
  - ☐ the certificates were still valid on 20 March 2023
  - ☐ the certificates expired before 20 March 2023 and a competent authority has granted a derogation from the applicable conformity assessment procedure according to MDR Article 59 (1)
  - ☐ the devices continue to comply with MDD
  - ☐ there are no significant changes in the design and intended purpose
  - ☐ the devices do not present an unacceptable risk to the health or safety of patients, users or other persons, or to other aspects of the protection of public health
  - ☐ a QMS according to MDR Article 10 (9) is implemented
- We undertake to fulfil the obligations imposed by the quality system approved.
- We undertake to keep the approved quality system adequate and effective.
- We undertake to keep up to date the post-market surveillance system and the PMCF plan.
- We undertake to fully comply with the vigilance requirements of Regulation (EU) 2017/745 (MDR) and to report, to the competent authorities and HTCert of the following incidents:
  - any serious incident involving devices made available on the Union market, except expected side-effects clearly documented in the product information which are subject to trend reporting.

- any field safety corrective action in respect of devices made available on the Union market, including any field safety corrective action undertaken in a third country in relation to a device which is also legally made available on the Union market, if the reason for the field safety corrective action is not limited to the device made available in the third country.

The reports will be submitted

- immediately after we establish the causal relationship between the incident and the device or that such causal relationship is reasonably possible and not later than 15 days after we become aware of the incident.
- in the event of a serious public health threat: immediately and not later than 2 days after we become aware of that threat.
- in the event of death or an unanticipated serious deterioration in a person's state of health: immediately after we establish or as soon as we suspect a causal relationship between the device and the serious incident but not later than 10 days after the date on which we become aware of the serious incident.

- We undertake to perform all the necessary investigations in relation to any serious incident and the devices concerned and to fully co-operate with the competent authorities and where relevant with HTCert during the investigations.
- We undertake the obligation to notify the competent authorities and HTCert on any statistically significant increase in the frequency or severity of incidents that are not serious incidents or that are expected undesirable side- effects.
- We undertake to comply with all other requirements following from the Regulation (EU) 2017/745 (MDR).
- We authorize HTCert to carry out all the necessary audits and supply it with all relevant information.
- We grant access to HTCert staff and representatives to all business premises without prior notice and we have agreed on this right of access with all critical suppliers and subcontractors involved in development, production, testing and storage for their business premises.
- We agree to notify HTCert of any planned changes that could affect the certified management system or the certified products.
- We agree to comply with the General Terms and Conditions of HTCert.
- We agree to pay all applicable fees as per the certification offer, the General Terms and Conditions and HTCert price list. We understand that non-payment of fees will result in withdrawal of approval and we undertake to pay the fees charged even when the tasks performed result in an undesirable outcome from our point of view.
- We understand and accept that HTCert has the right to suspend, restrict or withdraw certificates issued and the duty to fulfil its information obligations according to the MDR requirements. In addition, in the case of legacy devices for which the surveillance has been transferred to HTCert, we understand and accept that HTCert has the right to suspend, restrict or withdraw certificates issued by the MDD Notified Body.
- We declare that all data mentioned in this application, the appendices, the Quotation Questionnaire and all accompanying documents provided are truthful and correct.

For and behalf of Applicant *legally binding signature in accordance with the applicable national law*	
Name *(BLOCK CAPITALS)* **Carlos Zúñiga Arnau**	Position *(BLOCK CAPITALS)* **CEO**
Date **05/12/2024**	Signature Carlos Zúñiga Arnau
For and behalf of HTCert	
The contract enters into force on 30/12/2024	Contract No T_16024_24_03_02

Name GEORGIOS PAPPOUS, MANAGING DIRECTOR	Signature